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Credit - Drishti Ias

Special Executive Magistrates

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Source: TH

Why in News?

A **Special Executive Magistrate (SEM)** court in Delhi granted bail to two activists, rejecting the police's request for extended custody over an alleged breach of peace bonds. The case highlights the **preventive powers, jurisdiction and role of SEMs compared with Judicial Magistrates.**

Who are Special Executive Magistrates (SEMs)?

- **Appointment:** Under Section 15 of the **Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023** , State Governments may appoint Executive Magistrates or police officers **not below the rank of Superintendent of Police (SP)** or equivalent as SEMs for specified areas, periods or functions.
- **Police as Magistrates:** In commissionerate systems like Delhi, the **Delhi Police Act, 1978** allows the Centre to authorise police officers of the rank of Assistant Commissioner of Police (ACP) and above to exercise the powers of an executive magistrate.
- **Nature of Role:** SEMs belong to the Executive branch. Their primary function is strictly **preventive and administrative** to intervene before a disturbance happens, rather than to punish an individual for an offence that has already been committed.
- **Key Powers of SEMs** The powers of SEMs are largely preventive and are codified under the BNSS, 2023:
  - **Issuing "Peace Bonds" (Section 126, BNSS):** If an SEM suspects a person is likely to **breach public peace,** they can ask the individual to show cause as to why they should not execute a formal bond promising good behaviour for a period of up to one year.
  - **Preventive Inquiry (Section 135, BNSS):** The magistrate can conduct an inquiry and order security during the process, provided they record their reasons in writing.
  - **Detention for Breach (Section 141(1)(b), BNSS):** If an individual breaks the conditions of their peace bond, the SEM can bypass a normal trial and order their immediate arrest and detention for the remaining period of the bond.
  - **Urgent Prohibitory Orders (Section 163, BNSS):** SEMs can issue urgent preventive orders against nuisance or apprehended danger to human life, health, safety, or public tranquillity (e.g., preventing riots or obstruction).
  - **Bail in Preventive Crackdowns:** While they do not handle ordinary criminal bail, SEMs have the authority to accept sureties and grant bail or order temporary police custody during preventive

proceedings.

- **Judicial Review:** The actions and orders of an SEM are entirely subject to **judicial review** and administrative oversight to ensure they are legal and that citizens' rights are not arbitrarily violated.
- **Right to Challenge:** Depending on the nature of the specific order and the legal remedies available, a citizen can challenge an SEM's decision before an appropriate higher court or authority.

What are the Concerns Regarding the Powers of SEMs?

- **Threat to Personal Liberty:** Preventive arrests without a formal trial raise severe concerns regarding **Article 21** (Right to Life and Personal Liberty) and **Article 22** (Protection against arbitrary arrest and detention) of the Constitution.
- **Mechanical Orders and "Cyclostyled" Proformas:** Courts have repeatedly flagged the indiscriminate use of SEM powers.
- **Procedural Safeguards and Accountability:** In ***Aldanish Rein v. State of NCT of Delhi (2018),*** the Delhi High Court emphasised reasoned orders, periodic detention reviews, affordable sureties, access to legal aid and independent oversight to prevent arbitrary exercise of SEM powers.
- **Colonial Legacy:** The preventive powers of SEMs trace their origins back to **England's *Justices of the Peace Act, 1361* ,** which entered Indian law in 1861 to suppress dissent, retaining a colonial overtone.
- **Conflict of Interest and Natural Justice:** When police officers act as SEMs, the same executive machinery may initiate preventive proceedings and adjudicate them, raising concerns under the principle of Nemo Judex in Causa Sua (no one should be a judge in their own cause) and **Article 50** (separation of judiciary from executive).

SEMs vs. Judicial Magistrates

Feature	Special Executive Magistrates (SEMs)	Judicial Magistrates
Appointment	Appointed by the **State Government** .	Courts of Judicial Magistrates (first and second class) are established under **Section 9 of the BNSS** . While the State determines their number and location, the presiding officers are **appointed by the High Court,** not the State government.
Primary Role	Administrative and preventive (maintaining law and order).	Judicial Magistrates are an **independent part of the judicial system** tasked with dealing with formal criminal cases, hearing regular bail applications, conducting trials, and imposing legal sentences.
Judicial Powers	Cannot conduct formal criminal trials, convict, or impose sentences.	Presides over criminal courts, handles trials, and sentences offenders.

Frequently Asked Questions (FAQs)

1. What is a Special Executive Magistrate (SEM)?
A SEM is an executive authority appointed by the government under Section 15 of the BNSS, 2023, to exercise specified magisterial powers for maintaining public order and preventing breaches of peace.

2. What are the key preventive powers of SEMs under the BNSS, 2023?
Their powers include requiring security for keeping the peace under Section 126, conducting inquiries under Section 135 and issuing urgent orders under Section 163, subject to applicable legal conditions.

3. How do Special Executive Magistrates differ from Judicial Magistrates?
SEMs primarily exercise executive and preventive powers, while Judicial Magistrates handle criminal proceedings, conduct trials within their jurisdiction and exercise judicial powers independently.

4. How do SEM powers raise concerns regarding fundamental rights?
Preventive proceedings and detention may affect Article 21 (right to life and personal liberty) and Article 22 (safeguards against arrest and detention), making procedural safeguards and judicial review essential.

5. Why is the separation of powers relevant to SEMs?
When police officers exercise magisterial powers, concerns may arise over impartiality and accountability. Article 50 directs the State to separate the judiciary from the executive in public services.

[Watch Video on YouTube: ▶ https://www.youtube.com/embed/gahGpc2ra8M]

UPSC Civil Services Examination, Previous Year Questions

Prelims

Q. Consider the following statements: (2023)

1. According to the Constitution of India, the Central Government has a duty to protect States from internal disturbances.
2. The Constitution of India exempts the States from providing legal counsel to a person being held for preventive detention.
3. According to the Prevention of Terrorism Act, 2002, confession of the accused before the police cannot be used as evidence.

How many of the above statements are correct?

(a) Only one

(b) Only two

(c) All three

(d) None

Ans: B

Defence Acquisition Council Clears Procurement Proposals Worth ₹2.12 Lakh Crore

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Source: TH

Recently, the **Defence Acquisition Council (DAC)** , chaired by Defence Minister, accorded **Acceptance of Necessity (AoN)** for defence procurement proposals worth approximately ₹2.12 lakh crore, with around **82% of the proposed procurements expected to be sourced from Indian industry.**

- **Acceptance of Necessity (AoN):** It is an **initial approval** in the defence acquisition process indicating the need for a proposed procurement; it **does not mean the contracts have been awarded.**
- **Major acquisition proposals:**
  - **Indian Army:** Proposed acquisitions include **High Mobility Vehicles, self-propelled tracked gun systems, Light Multi-Role Helicopters , Very Short-Range Air Defence Systems (VSHORADS) , counter-drone systems** and **long-range drones.**
    - **Counter-Unmanned Aerial Systems (C-UAS) and surveillance drones** will improve protection against aerial threats and strengthen reconnaissance and targeting.
  - **Indian Navy: Active Offboard Decoy Systems (AODS)** will strengthen protection against anti-ship missile threats, alongside other naval platform acquisitions.
  - **Indian Air Force:** Proposed acquisitions include **helicopters, air defence systems, weapons and Mobile X-Band Doppler Weather Radar Systems** for localised weather surveillance in forward areas.
- **Domestic Manufacturing** : The proposed procurement is expected to support **indigenous defence production, technology development and the domestic defence industrial ecosystem.**
  - India's annual defence production reached a record **₹1.78 lakh crore in FY 2025-26,** reflecting **15.6% growth** over the previous financial year.
- **Significance** : Greater domestic sourcing can **reduce import dependence, strengthen military preparedness** and support India’s goal of **Aatmanirbhar Bharat in defence.**

Read more: DAC Granted Acceptance of Necessity for Defence Acquisition Proposals

Amendments to Central Motor Vehicle Rules for E100 Fuel Usage

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Source: TH

The Ministry of Road Transport and Highways (MoRTH) has amended the Central Motor Vehicles Rules (CMVR), 1989, to permit the use of **E100 (up to 100% ethanol)** as an automotive fuel in specially designed and certified **flex-fuel vehicles (FFVs).**

- **Statutory Amendments:** The government has modified **Rule 115 (dealing with emission standards)** and **Rule 115E (dealing with emission testing)** of the CMVR, 1989, to include E100 and E85 in the official fuel specification tables.
- **Target Vehicles:** The newly approved **E85 (85% ethanol)** and **E100 (100% ethanol)** fuels are strictly meant to be used in vehicles designed by **Original Equipment Manufacturers (OEMs) as dedicated flex-fuel vehicles** .
- **No Mandatory Transition:** The Ministry clarified that the notification **does not mandate existing vehicle owners to switch to E85 or modify their current engines** , easing public concerns over the transition.
- **Compatibility Distinction:** A vehicle engineered to run on **E10 or E20 (10% or 20% ethanol blending) is not automatically suitable for E85 or E100** . Motorists must rely on the **fuel compatibility sticker** and manufacturer guidelines.
- **Flex-Fuel Vehicles (FFVs):** These vehicles can operate on petrol and varying ethanol blends, potentially up to E100, using a single fuel tank. Their engine control systems automatically adjust to the fuel composition within the range certified by the manufacturer.
- **Ethanol (Ethyl Alcohol):** It is a renewable biofuel produced naturally by the fermentation of sugars by yeasts or via **petrochemical processes.**
  - In India, it is primarily derived from **sugarcane molasses, maize, and surplus food grains.**
- **Ethanol Blended Petrol (EBP) Programme** : Under the **National Policy on Biofuels, 2018** , the **Ethanol Blended Petrol (EBP) Programme** (launched in 2003) aims to curb crude oil imports, cut greenhouse gas emissions, and boost farmers' incomes by expanding permissible raw materials to include sugarcane juice, sugar beet, corn, and damaged grains.
  - The initiative reached a historic milestone by achieving its **20% ethanol blending target (E20) in 2025** , five years ahead of the original 2030 deadline.
  - Building on this success, as of **April 2026** , it is mandatory that all petrol sold across India contains 20% ethanol and meets a minimum **Research Octane Number (RON) of 95** .

Read more: **India’s Ethanol Blending Programme and the Path to E100**